

MANUFACTURED HOME RETAIL INSTALLMENT SALES CONTRACT FOR TEXAS CREDIT CODE FIXED RATE CONTRACT

IV. PAYMENT: You promise to pay to Creditor at creditor's principal place of business, or at such other place as Creditor shall designate in writing, the Total of Payments in consecutive monthly installments, in the amount and to begin, as set forth hereinbelow, and continuing on the same day of each successive month thereafter.

ANNUAL PERCENT RATE The cost of your credit as a yearly rate. %	FINANCE CHARGE The dollar amount the credit will cost you. 	Amount Financed The amount of credit provided to you or on your behalf. 	Total of Payments The amount you will have paid after you have made all payments as scheduled. 	Total Sale Price The total price of your purchase on credit, including your down-payment of:
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Your payment schedule will be:

Number of Payments	Amount of Payments	When Payments Are Due

Security: You are giving a security interest in the property being purchased.

You are also giving a security interest in: _____

Filing fees: _____

Late Charge: If a payment is late, you will be charged \$20.00 or 5% of the payment, whichever is less.

Prepayment: If you pay off early, you may be entitled to a refund of part of the finance charge.

Assumption: Someone buying your home may, subject to conditions, be allowed to assume the remainder of the contract on the original terms.

See your contract documents for any additional information about nonpayment, default, required insurance, and required repayment in full before the scheduled date, and prepayment refunds and penalties.

V. LATE CHARGE: Creditor may collect a delinquency (late) charge on each installment past due for a period of more than 15 days in an amount as set forth hereinabove. Only one late charge shall be collected on any installment regardless of the period during which it remains past due. For purposes of assessing delinquency charges, payments received shall be deemed to be applied first to current installments.

VI. PREPAYMENT: YOU MAY PREPAY IN FULL THE UNPAID BALANCE OF THIS CONTRACT AT ANY TIME, AND UPON SUCH PAYMENT, YOU SHALL RECEIVE A REFUND CREDIT REPRESENTING THE UNEARNED FINANCE CHARGE THEREON, COMPUTED PURSUANT TO THE "ACTUARIAL" METHOD AFTER FIRST DEDUCTING AN ACQUISITION CHARGE OF \$50.00. NO REFUND CREDIT SHALL BE MADE, UPON VOLUNTARY PREPAYMENT, IN AN AMOUNT LESS THAN \$1.00.

PAGE TWO: THIS CREDIT DOCUMENT CONSISTS OF MULTIPLE PAGES

Consumer Signature

Consumer Signature

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VII. SECURITY INTEREST: To secure such payments, You grant to Creditor a security interest in the manufactured home, all accessories, furnishings, appliances, and equipment sold with the manufactured home together with any proceeds pursuant to the Texas Business and Commerce Code.

VIII. ASSIGNMENT: Creditor may assign this contract and security agreement and Creditor's rights hereunder to another creditor. At the time of execution of this credit document, Creditor intends to make an assignment to _____

IX. INSURANCE: No coverage is included except as specifically disclosed herein.

A. GENERAL: You have the right to purchase and furnish the required insurance through any insurance company authorized to transact business in Texas, subject to Creditor's right to refuse to accept for good cause certain insurance policies from insurance companies designated by Creditor.

B. REQUIRED INSURANCE: You are required to insure the Collateral against physical damage, with a minimum coverage of fire and extended coverage equal to the value of the property, including flood if the manufactured home is placed in a federal flood plain. You are required to continue this insurance in effect until the indebtedness evidenced by this contract is paid in full. The insurance shall have a loss payable clause in Creditor's name and provide for 10 day notice of cancellation to Creditor. You are responsible for determining whether or not the property will be placed in a federal flood plain. If you secure the insurance coverage from Creditor, the initial term of coverage and the premium, including federal flood if applicable, is as set forth hereinbelow.

☐ You will furnish the required insurance for a term of _____ months at an estimated premium of \$ _____

☐ You want Creditor to purchase the following insurance coverage:

☐ Comprehensive with \$ _____ deductible

☐ Fire and Extended Coverage

☐ Fire, Theft and combined Additional Coverage

☐ Homeowner's Type

☐ If checked, federal flood insurance for a term of _____ months and premium of \$ _____ is added to the insurance

Total Property Insurance Premium \$ _____ For A Term of _____ Months

C. NON-REQUIRED INSURANCE: You may purchase certain other insurance through Creditor; however such is not required, including credit insurance, unless Consumer signs and agrees to pay the additional cost. Consumer chooses to purchase the following non-required insurance for the term and premium stated.

Type of Insurance	Term in Months	Premium	Signature: Consumer wants this insurance
			X
			X
			X

D. INSURANCE ESCROW OPTION: In lieu of purchasing insurance for a longer term initially, You have the option (not as a condition of the extension of credit) of securing insurance coverage for the first year and including payment for subsequent annual insurance premiums in your monthly payments. You may elect to pay, or include in the Amount Financed, the premium for the insurance coverage set forth hereinabove for a term of one year beginning with the execution of this credit document, and pay to Creditor thereafter, on the date each monthly installment is due, a sum equal to one-twelfth of the estimated annual premium for the subsequent year's insurance coverage. If You agree to this option, Creditor will give you an annual accounting, and You shall be obligated to continue to secure insurance coverage in this manner until the Amount Financed is paid in full. If the insurance premium installments paid to Creditor are insufficient to cover the annual premium, You shall immediately pay Creditor the amount of any deficiency.

☐ **YES,** You agree to the Insurance Escrow Option.

☐ You have paid \$ _____ for the first year's insurance premium.

or

☐ The first year's premium is included in the Amount Financed.

☐ **NO,** You do not agree to the Insurance Escrow Option.

E. INSURANCE PROCEEDS: The proceeds of any insurance, whether paid by reason of loss, injury, return premium or otherwise, shall be applied toward the replacement or repair of the property or as payment on account of this obligation at the creditor's option, with any remaining balance refunded to You. No refund shall be made in an amount less than \$1.00

X. FORCED PLACED INSURANCE: If you fail to have and maintain the required insurance, Creditor may, but is not required, to purchase the required insurance or treat your failure as a default. If Creditor purchases the insurance, You shall immediately reimburse Creditor for the cost thereof or such cost plus interest at a rate equal to this contract's Annual Percentage Rate, or the last adjusted rate if applicable, will be added to the unpaid balance of this contract. If you purchased more insurance than the minimum required insurance, and you fail to maintain the insurance, Creditor may elect to purchase only the required insurance with less coverage than you previously had purchased. If you want to insure that you have all of the coverage that you purchased in excess of the required insurance, then you must make certain your insurance never lapses and the forced place option provided herein never becomes applicable.

PAGE THREE: THIS CREDIT DOCUMENT CONSISTS OF MULTIPLE PAGES

Consumer Signature

Consumer Signature

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XI. TAX ESCROW : You are required to pay ad valorem taxes on your collateral through the Creditor as long as you owe Creditor under this contract. You must pay to Creditor each month a sum equal to one-twelfth of the estimated annual ad valorem tax on the date each monthly installment is due. Each year you will receive from Creditor an accounting of this tax escrow account. If the tax installments paid to Creditor are not sufficient to pay the ad valorem taxes when due, you may immediately pay the deficiency in a single cash payment. Alternatively, the Creditor will pay the deficiency and divide this amount by twelve (12). The resulting one-twelfth (1/12th) shall be added to the following year's escrow payment and will accrue interest at the same rate as the Annual Percentage Rate disclosed herein.

- ☐ You have paid \$_____ for the first year's estimated taxes. As shown by the receipt.
- or
- ☐ The amount of the first year's estimated taxes has been divided by 12 and included in the monthly installment.

XII. DEFAULT: If you default in performing any obligation herein, Creditor will provide you with a notice and opportunity to cure as required by applicable statutes and regulations. If you fail to cure the default within the time period set forth in the notice, then the creditor may accelerate the maturity of any part or all of the amount owing hereunder. At such time, Creditor shall give you a refund credit calculated in the same manner as prepayments as described above. If this contract is referred for collection to an attorney, you agree to pay an attorney's reasonable fee, all court costs and disbursement. You shall be liable for all actual and reasonable out-of-pocket expenses incurred in connection with repossession or foreclosure. Creditor may waive any default in any reasonable manner without waiving the default remedy or any other prior or subsequent default. Upon default and having declared said indebtedness due, Creditor may either foreclose through the Courts or may proceed to sell the Collateral pursuant to the provisions of the Texas Business and Commerce Code. You expressly agree that Creditor may become the purchaser of said Collateral at any public sale just as any other person. You agree that any sums in the insurance and/or tax escrow accounts, along with any unearned insurance premiums which may be refunded upon cancellation of the insurance, shall be applied to the remaining balance of the obligation. You shall be liable for any deficiency after application of the proceeds of the Collateral to the obligation. In the event of acceleration, the outstanding debt as calculated in accordance with this section, including any expenses actually incurred and authorized by this section, bears interest at a rate equal to the contract rate or last adjusted rate.

XIII. YOU REPRESENT, WARRANT AND AGREE: All information supplied and statements made by You in any financial, credit or accounting statement or application for credit prior to or contemporaneously with the execution of this Contract are true, correct, valid and genuine. The rights and privileges of Creditor under this Contract shall inure to the benefit of its personal representatives, heirs, successors or assigns. All payment obligations, covenants, representations, and agreements of you contained herein are joint and several and shall bind your personal representatives, heirs, successors and assigns. If any provision in this Contract shall for any reason be held invalid or unenforceable, such shall not affect any other provision hereof, but this Contract shall be construed as if such invalid or unenforceable provision had never been contained herein. You covenant that the Collateral shall not become a part of real property.

You authorize Creditor to furnish specific information about the property and any insurance policies on the property to any insurance agent to enable such agent to quote annual premiums to and solicit your insurance business.

NOTICE

ANY HOLDER OF THIS CONSUMER CREDIT CONTRACT IS SUBJECT TO ALL CLAIMS AND DEFENSES WHICH THE DEBTOR COULD ASSERT AGAINST THE SELLER OF GOODS OR SERVICES OBTAINED PURSUANT HERETO OR WITH THE PROCEEDS HEREOF. RECOVERY HEREUNDER BY THE DEBTOR SHALL NOT EXCEED AMOUNTS PAID BY THE DEBTOR HEREUNDER.

NOTICE TO THE CONSUMER: DO NOT SIGN THIS DOCUMENT BEFORE YOU READ IT OR IF IT CONTAINS ANY BLANK SPACES. YOU ARE ENTITLED TO A COPY OF THE DOCUMENT YOU SIGN. UNDER THE LAW YOU HAVE THE RIGHT TO PAY OFF IN ADVANCE THE FULL AMOUNT DUE AND OBTAIN A SUBSTANTIAL REFUND OF THE CREDIT CHARGE. KEEP THIS DOCUMENT TO PROTECT YOUR LEGAL RIGHTS.

YOU ACKNOWLEDGE (1) THAT YOU HAVE READ THIS CONTRACT, (2) THAT ALL DISCLOSURES IN THIS CONTRACT WERE MADE PRIOR TO THE CONSUMMATION OF THE CONTRACT, (3) THAT ALL BLANKS WERE FILLED IN BEFORE YOU SIGNED THE CONTRACT BELOW, (4) THAT YOU RECEIVED A SEPARATE WRITTEN WARRANTY FROM CREDITOR ON ANY NEW COLLATERAL, AND (5) THAT YOU RECEIVED A COPY OF THIS CONTRACT AT THE TIME THIS CONTRACT WAS SIGNED.

PAGE FOUR: THIS CREDIT DOCUMENT CONSISTS OF MULTIPLE PAGES.

Creditor

Creditor Address

City, State, Zip

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Creditor's Telephone

By: _____
Creditor's Representative

Date of this Credit Document: _____

X _____
Consumer (You) Signature

X _____
Consumer (You) Signature

Consumer Address

City, State, Zip